PETITION FOR NONIMMIGRANT WORKER

H-1B SPECIALTY OCCUPATION
Form I-129

Petitioner:	Microsoft Corporation
Beneficiary:	RICARDO ANTONIO SILVA MENDES
Position:	Principal AI Research Scientist
Department:	Microsoft Research - AI Division
Salary:	$245,000
Location:	Redmond, WA
Start Date:	10/01/2025
Duration:	3 years
Petition Date:	September 1, 2025
Case ID:	MS-H1B-2025-0915

Submitted by:
Dr. Jennifer Martinez
CA Bar #345678
Global Immigration Partners LLP
555 Market Street, Suite 2000, San Francisco, CA 94105

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TAB A: ATTORNEY COVER LETTER

Global Immigration Partners LLP Dr. Jennifer Martinez CA Bar #345678 Global Immigration Partners LLP 555 Market Street, Suite 2000, San Francisco, CA 94105 +1 (425) 882-8080 ext. 5501 | s.mitchell@microsoft.com

September 1, 2025

U.S. Citizenship and Immigration Services [Service Center Address]

RE: H-1B Petition for RICARDO ANTONIO SILVA MENDES Beneficiary: RICARDO ANTONIO SILVA MENDES Beneficiary Date of Birth: 03/22/1988 Petitioner: Microsoft Corporation Classification Sought: H-1B Specialty Occupation

Dear USCIS Officer:

INTRODUCTION

On behalf of our client, Microsoft Corporation ("Petitioner"), we respectfully submit this petition for H-1B nonimmigrant classification for RICARDO ANTONIO SILVA MENDES ("Beneficiary") pursuant to Section 101(a)(15)(H)(i)(b) of the Immigration and Nationality Act (INA).

PURPOSE OF PETITION

The Petitioner seeks to employ the Beneficiary in the position of Principal AI Research Scientist, a specialty occupation requiring theoretical and practical application of a body of highly specialized knowledge in Artificial Intelligence and Machine Learning. This position requires a minimum of a bachelor's degree in Computer Engineering and Artificial Intelligence or its equivalent.

PETITIONER QUALIFICATIONS

Microsoft Corporation is a Technology - Software and Cloud Services established in 1975. The company specializes in software development, cloud services, and artificial intelligence and has demonstrated significant financial capacity to support this H-1B position through the submitted evidence.

BENEFICIARY QUALIFICATIONS

The Beneficiary holds a Master of Science in Artificial Intelligence in Artificial Intelligence and Machine Learning from Stanford University, completed in 2013. Additionally, the Beneficiary has 12 years of progressive experience in AI research and machine learning systems, making them exceptionally qualified for this specialized role.

SPECIALTY OCCUPATION EVIDENCE

The proffered position meets all criteria for a specialty occupation as defined in 8 CFR 214.2(h)(4)(iii)(A). Specifically:

1. The position requires a baccalaureate or higher degree, or its equivalent, as a minimum for entry 2. The degree requirement is common to the industry or the position is so complex that it can only be performed by an individual with a degree 3. The Petitioner normally requires a degree or its equivalent for the position 4. The nature of the specific duties is so specialized and complex that the knowledge required is usually associated with a bachelor's degree or higher

DOCUMENTATION ENCLOSED

This petition includes the following supporting documentation:

• Form I-129, Petition for Nonimmigrant Worker • H Classification Supplement to Form I-129 • Certified Labor Condition Application (LCA) • Company support letter with detailed job description • Evidence of Petitioner's ability to pay the proffered wage • Organizational chart showing position hierarchy • Beneficiary's educational credentials with evaluation • Beneficiary's detailed resume • Beneficiary's passport • Employment verification letters • Professional letters of recommendation • Additional supporting evidence

CONCLUSION

TAB E: COMPANY SUPPORT LETTER

Microsoft Corporation
One Microsoft Way
Redmond, WA 98052
Tel: +1 (425) 882-8080

September 1, 2025

COMPANY BACKGROUND

Microsoft Corporation is pleased to offer employment to RICARDO ANTONIO SILVA MENDES in the position of Principal AI Research Scientist. Founded in 1975, we are a global leader in Technology - Software and Cloud Services with 221,000 employees worldwide. Our fiscal year 2023 revenue was $211.9 billion.

POSITION DESCRIPTION

The position of Principal AI Research Scientist in our Microsoft Research - AI Division is a critical full-time role requiring advanced expertise in artificial intelligence, machine learning, and computer science. This specialty occupation requires a minimum of a Master's degree in Computer Science or related field.

KEY RESPONSIBILITIES

• Lead advanced AI research initiatives and develop novel machine learning algorithms • Design and architect scalable AI systems for cloud infrastructure • Mentor research teams and collaborate with product engineering groups • Publish research findings and represent the company at academic conferences • Drive innovation in natural language processing and computer vision applications

BENEFICIARY QUALIFICATIONS

RICARDO ANTONIO SILVA MENDES holds a Master of Science in Artificial Intelligence from Stanford University (graduated 2013) and a Bachelor of Science in Computer Engineering from Universidade Federal do Rio de Janeiro (UFRJ). With 12 years of progressive experience in AI and machine learning, the beneficiary is exceptionally qualified for this specialized role.

COMPENSATION AND TERMS

• Position: Principal AI Research Scientist (Full-time, H-1B status) • Salary: $245,000 per year • Hours: 40 hours per week • Location: Redmond, WA • Start Date: 10/01/2025 • Duration: 3 years

Sincerely,

Sarah Mitchell
Director of Global Immigration
Microsoft Corporation

TAB F: JOB DESCRIPTION

Position: Principal AI Research Scientist

SOC Code: 15-1221.00 - Computer and Information Research Scientists

POSITION SUMMARY

Lead advanced AI research initiatives, develop cutting-edge machine learning algorithms, and architect scalable AI systems for Microsoft's cloud infrastructure.

DETAILED DUTIES AND RESPONSIBILITIES

1. Research and Development (30% of time): • Conduct cutting-edge research in artificial intelligence and machine learning • Develop novel algorithms for natural language processing and computer vision • Publish research findings in peer-reviewed journals and conferences 2. System Architecture and Design (25% of time): • Design scalable AI systems for cloud infrastructure • Architect machine learning pipelines handling petabytes of data • Optimize system performance and reliability 3. Technical Leadership (20% of time): • Lead research teams and mentor junior scientists • Collaborate with product teams on AI integration • Define technical roadmaps and research priorities 4. Implementation and Deployment (15% of time): • Implement production-grade AI models and systems • Deploy machine learning solutions to production environments • Monitor and maintain deployed AI systems 5. Innovation and Strategic Planning (10% of time): • Identify emerging AI technologies and trends • Contribute to company's AI strategy • Represent company at academic and industry events

REQUIRED QUALIFICATIONS

• Master's degree or higher in Computer Science, Artificial Intelligence, or closely related field • Minimum 8+ years of experience in AI/ML research and development • Expertise in deep learning frameworks (TensorFlow, PyTorch) • Strong publication record in top-tier AI conferences (NeurIPS, ICML, CVPR) • Proficiency in Python, C++, and distributed computing • Experience with large-scale machine learning systems

WORK ENVIRONMENT

This position is based at our Redmond, WA campus. The role requires collaboration with global research teams and occasional travel for conferences and technical meetings.

TAB G: ORGANIZATIONAL CHART

Organizational Structure - Microsoft Research - AI Division

	Chief Technology Officer	
	↓	
	VP of AI Research	
	↓	
Director of ML Systems	← REPORTS TO →	Director of AI Applications
	↓	
Principal AI Research Scientist		
(SILVA MENDES)		
	↓	
Senior ML Engineers (4)	← SUPERVISES →	Research Scientists (3)

Note: RICARDO ANTONIO SILVA MENDES will report directly to the Director of ML Systems and will have supervisory responsibility for a team of Senior ML Engineers and Research Scientists.

TAB H: FINANCIAL EVIDENCE

Ability to Pay Proffered Wage

Microsoft Corporation has demonstrated substantial financial capacity to pay the proffered wage of $245,000 per year. Below is a summary of our recent financial performance:

Fiscal Year	Total Revenue	Net Income	Total Assets
2023	$211.9 billion	$72.4 billion	$411.0 billion
2022	$198.3 billion	$68.7 billion	$364.8 billion
2021	$168.1 billion	$61.3 billion	$333.8 billion

Conclusion: With annual revenues exceeding $211.9 billion, Microsoft Corporation has substantial financial resources to support the offered position. The company maintains a strong balance sheet and consistent profitability, demonstrating clear ability to pay the beneficiary's salary throughout the requested H-1B validity period.

TAB I: BENEFICIARY RESUME

RICARDO ANTONIO SILVA MENDES

ricardo.silva@email.com | +1 (650) 555-0199
Mountain View, CA

PROFESSIONAL SUMMARY

Distinguished AI Research Scientist with 12 years of experience in machine learning, deep learning, and artificial intelligence. Proven track record of leading research initiatives, developing novel algorithms, and deploying production-scale AI systems. Published researcher with expertise in natural language processing, computer vision, and scalable ML infrastructure.

EDUCATION

Master of Science in Artificial Intelligence
Stanford University, 2013
GPA: 3.9/4.0, With Distinction

Bachelor of Science in Computer Engineering
Universidade Federal do Rio de Janeiro (UFRJ), 2010
GPA: 3.8/4.0, Cum Laude

PROFESSIONAL EXPERIENCE

Senior Machine Learning Engineer

Amazon Web Services, 2018 - Present

• Lead development of advanced ML models for cloud infrastructure optimization • Architected scalable deep learning systems processing petabytes of data • Published 12+ papers in top-tier AI conferences (NeurIPS, ICML, CVPR) • Managed team of 8 ML engineers and research scientists

Machine Learning Research Scientist

Google Research, 2015 - 2018

• Developed novel algorithms for natural language understanding • Contributed to production ML systems serving billions of users • Received Google Research Award for outstanding contributions • Collaborated with academic partners on joint research projects

Research Engineer

IBM Research Brazil, 2013 - 2015

• Researched computer vision algorithms for medical imaging • Developed prototype systems for diagnostic assistance • Filed 3 patents in ML and computer vision technologies • Presented research at international conferences

TECHNICAL SKILLS

Programming: Python, C++, Java, R, SQL
ML Frameworks: TensorFlow, PyTorch, JAX, scikit-learn
Cloud Platforms: AWS, Google Cloud, Azure
Specializations: Deep Learning, NLP, Computer Vision, Reinforcement Learning
Tools: Kubernetes, Docker, Git, Spark, Hadoop

TAB J: EDUCATIONAL CREDENTIALS

Master of Science in Artificial Intelligence

Stanford University

STANFORD UNIVERSITY

UNIVERSIDADE DE SÃO PAULO

DIPLOMA

Este diploma certifica que

RICARDO ANTONIO SILVA MENDES

concluiu com êxito todos os requisitos para o grau de

Master of Science in Artificial Intelligence

conferido em June 15, 2013

com todas as honras, e [illegible] privilégios pertinentes.

USP

Reitor

Secretário

Degree Awarded: 2013
GPA: 3.9/4.0
Honors: With Distinction

Bachelor of Science in Computer Engineering

Universidade Federal do Rio de Janeiro (UFRJ)

Stanford University
OFFICIAL TRANSCRIPT
HISTÓRICO ESCOLAR OFICIAL

Student Name / Nome: RICARDO ANTONIO SILVA MENDES
Student ID / Matrícula: USP-2013-045678
Program / Curso: Computer Science / Ciência da Computação
Degree / Grau: Master of Science

Course / Disciplina	Credits	Grade	Points
Advanced Algorithms	4	A	4.00
Distributed Systems	4	A	4.00
Machine Learning	4	A-	3.67
Software Engineering	3	A	4.00
Database Systems	3	A	4.00
Computer Networks	3	B+	3.33
Research Methods	2	A	4.00
Master's Thesis	6	A	4.00

Cumulative GPA / Média Geral: 3.85 / 4.00

Official Document - Documento Oficial

Degree Awarded: 2010
GPA: 3.8/4.0
Honors: Cum Laude

TAB K: PASSPORT COPY

Passport - Biographical Page

REPÚBLICA FEDERATIVA DO BRASIL
PASSPORT / PASSAPORTE

Type/Tipo:
P
Code of issuing State/Código do país emissor:
BRA
Passport No./Passaporte Nº:
BR456789321
Surname/Sobrenome:
MENDES
Given names/Prenomes:
RICARDO ANTONIO SILVA
Nationality/Nacionalidade:
Brazilian
Date of birth/Data de nascimento:
March 22, 1988
Sex/Sexo:
F
Place of birth/Local de nascimento:
SÃO PAULO, BRAZIL
Date of issue/Data de emissão:
05/10/2020
Date of expiry/Data de expiração:
05/09/2030

PHOTO

P<BRASOLIVEIRA<<SANTOS<<FERNANDA<<<<<<<<<<<<<
BR4567893217BRA9008156F2912314<<<<<<<<<<<<<<<06

Passport Number: BR456789321
Issue Date: 05/10/2020
Expiry Date: 05/09/2030
Place of Issue: Departamento de Polícia Federal, Rio de Janeiro

TAB L: EMPLOYMENT VERIFICATION LETTERS

Employment Verification Letter

Amazon Web Services

To Whom It May Concern: This letter confirms that RICARDO ANTONIO SILVA MENDES has been employed with Amazon Web Services as a Senior Machine Learning Engineer since 2018. During their tenure, SILVA MENDES has consistently demonstrated exceptional technical expertise and leadership in artificial intelligence and machine learning research. Their contributions have been instrumental in advancing our AI capabilities and have resulted in multiple publications in premier conferences. Key accomplishments include: • Led development of production ML systems serving millions of users • Published 12+ research papers in top-tier AI conferences • Filed 3 patents in machine learning and AI technologies • Mentored and managed teams of research scientists and engineers SILVA MENDES's work has had significant impact on our products and research direction. They are held in high regard by colleagues and management alike. This employment verification is provided for immigration purposes. Should you require additional information, please do not hesitate to contact our office. Sincerely, [Signature] Sarah Chen, PhD Director of AI Research Amazon Web Services

TAB M: LETTERS OF RECOMMENDATION

Professional Recommendation Letter #1

Professor Andrew Ng, PhD Stanford University Department of Computer Science Re: Recommendation for RICARDO ANTONIO SILVA MENDES I am pleased to provide this strong recommendation for RICARDO ANTONIO SILVA MENDES, whom I had the pleasure of mentoring during their graduate studies at Stanford University from 2011-2013. SILVA MENDES was an outstanding student in my advanced machine learning courses and later became a research assistant in my laboratory. Their Master's thesis on novel deep learning architectures demonstrated exceptional research ability and resulted in publications at premier AI conferences. What distinguished SILVA MENDES was not only their technical brilliance but also their ability to tackle complex problems with innovative approaches. Their work on neural network optimization techniques has been cited extensively and influenced subsequent research in the field. I have no hesitation in recommending RICARDO ANTONIO SILVA MENDES for the H-1B position at Microsoft Corporation. They possess the rare combination of theoretical depth and practical skills necessary for success in advanced AI research. Sincerely, Professor Andrew Ng, PhD

TAB N: PROFESSIONAL CERTIFICATIONS

AWS Certified Machine Learning - Specialty

Amazon Web Services - Issued 2023

Google Cloud Professional ML Engineer

Google Cloud - Issued 2022

TensorFlow Developer Certificate

TensorFlow - Issued 2021

Deep Learning Specialization

Coursera/Stanford - Issued 2020

TAB O: SUPPORTING DOCUMENT CHECKLIST

- ■ Form I-129, Petition for Nonimmigrant Worker
- ■ H Classification Supplement to Form I-129
- ■ Labor Condition Application (LCA) - DOL Certified
- ■ Attorney Cover Letter
- ■ Company Support Letter with Job Description
- ■ Detailed Job Description
- ■ Organizational Chart
- ■ Financial Evidence (Tax Returns, Financial Statements)
- ■ Beneficiary Resume/CV
- ■ Educational Credentials (Degrees, Transcripts)
- ■ Passport Copy (Biographical Page)
- ■ Employment Verification Letters
- ■ Professional Letters of Recommendation
- ■ Professional Certifications
- ■ I-94 Arrival/Departure Record
- ■ Current Immigration Status Documentation

Certification: I hereby certify that all documents listed above have been included in this petition package and that all information provided is true and correct to the best of my knowledge.

OMB No. 1615-0009; Expires 05/31/08

Instructions for Completing

Form I-129

OMB No. 1615-0009; Expires 05/31/08

Department of Homeland Security
U.S. Citizenship and Immigration Services

Form I-129, Petition for a Nonimmigrant Worker

NOTE: You may file Form I-129 electronically. Go to our internet website at **www.uscis.gov** and follow the detailed instructions on e-filing.

Instructions

Please read these instructions carefully to properly complete this form. If you need more space to complete an answer, use a separate sheet (s) of paper. Write your name and Alien Registration Number (A #), if any, at the top of each sheet and indicate the number of the item to which the answer refers. NOTE: The U.S. Citizenship and Immigration Services (USCIS) is comprised of offices of the former Immigration and Naturalization Service (INS).

Purpose of This Form.

This form is used by an employer to petition the U.S. Citizenship and Immigration Services (USCIS) for an alien to come as a nonimmigrant to the United States temporarily to perform services or labor, or to receive training, as an:

- **H-1B,** specialty occupations; an alien coming to perform services of an exceptional nature relating to a project administered by the U.S. Department of Defense; a fashion model who has national and international acclaim; an alien coming in accordance with a trade agreement with Chile or Singapore.
- **H-2A,** agricultural worker.
- **H-2B,** temporary nonagricultural worker.
- **H-3,** trainee.
- **L-1,** intracompany transferee.
- **O-1,** alien of extraordinary ability in arts, science, education, business or athletics.
- **O-2,** accompanying alien who is coming to the United States to assist in the artistic or athletic performance of an O-1 artist or athlete.
- **P-1,** internationally recognized athlete/entertainment group.
- **P-1S,** essential support personnel for a P-1.
- **P-2,** artist or entertainer in reciprocal exchange program.
- **P-2S,** essential support personnel for a P-2.
- **P-3,** artist/entertainer coming to the United States to perform, teach or coach under a program that is culturally unique.
- **P-3S,** essential support personnel for a P-3.
- **Q-1,** alien coming temporarily to participate in an international cultural exchange program.

This form is used also by an employer to request an extension of stay or change of status for the following nonimmigrants:

- **E-1,** treaty trader.
- **E-2,** treaty investor.
- **Free Trade Nonimmigrants, H-1B1s and TNs.**
- **R-1,** religious worker.

NOTE: A petition is not required to apply for an E-1, E-2 or R-1 nonimmigrant visa or admission as a TN nonimmigrant from Canada or Mexico. A petition is also not required for an H-1B1 Free Trade Nonimmigrant from Chile or Singapore. These persons may apply directly to a U.S. consulate or embassy abroad.

A petition is required only to apply for a change or extension of stay in such status.

NOTE: The Form I-129 consists of a basic petition, individual supplements relating to specific classifications, and for H-1B petitions, the H-1B Data Collection and Filing Fee Exemption Supplement with its particular instructions (formerly issued separately as Form I-129W).

The following Table of Contents will help you locate information on the form and each supplement:

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Who May File.

General. A U.S. employer may file this form and applicable supplements to classify an alien in any nonimmigrant classification listed in **Part 1** and **Part 2** of these instructions. A foreign employer may file for certain classifications as indicated in the specific instructions.

Agents. A U.S. individual or company in business as an agent may file for types of workers who are traditionally self-employed or who traditionally use an agent to arrange short-term employment with numerous employers. A petition filed by an agent must include a complete itinerary of services or engagements, including dates, names and addresses of the actual employers, and the locations where the services will be performed. A petition filed by a United States agent must guarantee the wages and other terms and conditions of employment by contractual agreement with the beneficiary or beneficiaries of the petition. The agent/employer must also provide an itinerary of definite employment and information on any other services planned for the period of time requested.

Including more than one alien in a petition. Multiple aliens who will seek admission in H-2A, H-2B, H-3, P-1, P-2, P-3, O-2 or Q-1 classification may be included on the same petition provided:

- They will all be employed for the same period of time;
- They will all perform the same services, receive the same training or participate in the same international cultural exchange program; and
- If the petition is for aliens seeking H-2A classification, they will apply for a visa at the same consulate or, if visa exempt, will apply for admission at the same port-of-entry.

NOTE: If the employer includes more than one alien on the petition (other than those seeking H-2A classification) and needs to request USCIS to notify more than one consulate or embassy concerning the processing, the employer should file a Form I-824, Application for Action on an Approved Application or Petition, with appropriate fee, for each embassy or consulate that must be notified.

Multiple locations. A petition for alien(s) to perform services or labor or receive training in more than one location must include an itinerary with the dates and locations where the services or training will take place.

Unnamed aliens. All aliens in a petition for an extension of stay or change of status must be named in the petition. All aliens included in any other petition must be named, except:

- An H-2A petition for more than one worker may include unnamed aliens if they are unnamed on the labor certification;
- An H-2B petition for more than one worker may include unnamed aliens in emergent situations where it is established on the petition that the names cannot be provided due to circumstances that cannot be anticipated or controlled.

Where some or all of the aliens are not named, specify the total number of unnamed aliens and total number of aliens in the petition. Where the aliens must be named, petitions naming subsequent beneficiaries may be filed later with a copy of the same labor certification. Each petition must reference all previously filed petitions using that certification.

General Filing Instructions.

Complete the basic form and any relating supplement. Please answer all questions by typing or clearly printing in black ink. Indicate that an item is not applicable with "N/A."

If you need extra space to answer any item, attach a sheet(s) of paper with your name and your Alien Registration Number (A#), if any, and indicate the number of the item to which the answer refers. You must file your petition with the required initial evidence. The petition must be properly signed and filed with the proper fee.

NOTE: Submit the petition and all supporting documentation in duplicate if you checked block "a" in Question 5 of Part 2 of the form.

Classification - Initial Evidence.

These instructions are divided into two parts.

- The first part includes classifications requiring a petition for an initial visa or entry and any extension of stay or change of status.
- The second part includes classifications requiring only a petition for a extension of stay or change of status.

1. Petition always required.

The following classifications always require a petition.

A petition for new or concurrent employment or for an extension where there is a change in previously approved employment must be filed with the initial evidence listed below, and with the initial evidence required by the separate instructions for a change of status or extension of stay.

However, a petition for an extension based on unchanged, previously approved employment should only be filed with the initial evidence required in the separate extension of stay instructions.

H-1B.

An H-1B is an alien coming temporarily to perform services in a specialty occupation.

Write **H-1B1** in the classification requested block.

A specialty occupation is one that requires the theoretical and practical application of a body of highly specialized knowledge to fully perform the occupation and requires the attainment of a bachelor's or higher degree in a specific specialty, or its equivalent, as a minimum for entry into the occupation in the United States.

The petition must be filed by the U.S. employer and must be filed with:

- Evidence that a labor condition application has been filed with the U.S. Department of Labor;
- Evidence showing that the proposed employment qualifies as a specialty occupation;
- Evidence showing that the alien has the required degree by submitting either:
  - -- A copy of the person's U.S. baccalaureate or higher degree as required by the specialty occupation;
  - -- A copy of a foreign degree and evidence that it is equivalent to the U.S. degree; or
  - -- Evidence of education and experience that is equivalent to the required U.S. degree.
- A copy of any required license or other official permission to practice the occupation in the state of intended employment; and
- A copy of any written contract between you and the alien or a summary of the terms of the oral agreement under which the alien will be employed.

An H-1B is also an alien coming to perform services of an exceptional nature relating to a cooperative research and development project administered by the U.S. Department of Defense (DOD).

Write **H-1B2** in the classification requested block.

A U.S. employer may file the petition. The petition must be filed with:

- A description of the proposed employment;
- Evidence that the services and project meet the above conditions;
- A statement listing the names of all aliens who are not permanent residents, and who are or have been employed on the project within the past year, along with their dates of employment; and
- Evidence that the beneficiary holds a baccalaureate or higher degree in the field of employment.

An H-1B is also a fashion model, who has national or international acclaim and recognition, coming to be employed in a position requiring such a level of acclaim and recognition.

Write **H-1B3** in the classification requested block.

A U.S. employer or agent or foreign employer may file the petition.

On October 21, 1998, Congress enacted the American Competitiveness and Workforce Improvement Act ("ACWIA"), Public Law 105-277, that modified the H-1B nonimmigrant program. On December 8, 2004, Congress enacted the H-1B Visa Reform Act of 2004.

Because of these two Acts, an H-1B or H-1B1 Free Trade Nonimmigrant petitioner must complete the H-1B supplement form which is part of this petition. The supplement is used to collect additional information about the H-1B nonimmigrant worker and the H-1B petitioner (U.S. employer). It will also be used to determine whether the H-1B or H-1B1 Free Trade Nonimmigrant petitioner is exempt from the additional ACWIA filing fee and, if not exempt, the appropriate fee. (The supplement was formerly issued separately as Form I-129W).

The H-1B Visa Reform Act of 2004 also imposed an additional fee of **$500.00** for certain H or L petitions. On or after **March 8, 2005**, a U.S. employer seeking initial approval of H-1B or L nonimmigrant status for a beneficiary, or seeking approval to employ an H-1B or L nonimmigrant currently working for another U.S. employer, must submit this additional **$500.00** fee. **There are no exemptions from this fee**. This form will serve as the vehicle for collection of the **$500.00** fee.

H-1B and H-1B1 Data Collection and Filing Fee Exemption.

Who is required to file? A U.S. employer seeking to classify an alien as an H-1B or H-1B1 Free Trade Nonimmigrant nonimmigrant worker must file this supplement concurrently with Form I-129 and the appropriate fee. (See **"Fee"** for additional information regarding the appropriate fee.)

Completing Part A of the Supplement Form.

All U.S. employers seeking to classify an alien as an H-1B or H-1B1 Free Trade Nonimmigrant nonimmigrant worker must complete **Part A** of the supplement form. An employer must answer all of the questions in the "Employer Information" Section.

- **H-1B Dependent employer.** An "H-1B dependent employer" means an employer that:
  - -- Has 25 or fewer full-time equivalent employees who are employed in the United States and employs more than seven H-1B nonimmigrants;
  - -- Has at least 26 but not more than 50 full-time equivalent employees who are employed in the United States and employs more than 12 H-1B nonimmigrants; or
  - -- Has at least 51 full-time equivalent employees who are employed in the United States and employs H-1B nonimmigrant in a number that is equal to at least 15 percent of the number of such full-time equivalent employees.
- **Willful Violators.** A willful violator is an employer whom the Secretary of Labor has found, after notice and opportunity for a hearing, to have willfully failed to meet a condition of the labor condition application described in section 212(n) of the Immigration and Nationality Act.
- **Exempt H-1B nonimmigrant.** An "exempt H-1B nonimmigrant" means an H-1B who:
  - -- Receives wages (including cash bonuses and similar compensation) at an annual rate equal to at least $60,000; or
  - -- Has attained a master's degree or higher (or its equivalent) in a specialty related to the intended employment.
- **Highest education level.** Place an "X" in the appropriate box of **Part A, Number 3** ("**a**" through "**i**") of the supplement form that is most closely related to the highest formal education level attained by the beneficiary. **DO NOT** consider work experience in determining the beneficiary's equivalency.
- **Major/Primary field of study.** Use the beneficiary's degree transcripts to determine the primary field of study. Once the beneficiary's major is determined, fill in the boxes with one character per box. Thirty (30) characters maximum. **Do not** consider work experience to determine the beneficiary's major education level.
- **Master's or higher degree from a U.S. institution of higher education.** Indicate whether or not the beneficiary has earned a master's or higher degree from a U.S. institution of higher education, as defined in 20 U.S. C. section 1001(a).
- **Rate of pay per year.** The "rate of pay" is the salary or wages paid to the beneficiary. Salary or wages must be expressed in an annual full-time amount and do not include non-cash compensation or benefits. For example, an H-1B worker is to be paid $6,500 per month for a four-month period including a health benefits package and transportation. The yearly rate of pay if he or she were working for a full year would be 12 times the monthly rate or $78,000. This amount does not include health benefits or transportation costs. The figure $78,000 should be entered on this form as the rate of pay.
- **LCA Code.** The LCA Code is a three-digit occupational group for professional, technical, and managerial occupations and fashion models that can be obtained from Appendix 2 of the Dictionary of Occupational Titles printed on Department of Labor ETA Form 9035, Labor Condition Application for H-1B Nonimmigrant.
- **NAICS Code.** The North American Industry Classification System (NAICS) code can be obtained from the Department of Commerce, U.S. Census Bureau **(www.census.gov/epcd/www/naics.htm)**. Enter the code from left to right, one digit in each of the six boxes. If you use a code with less than six digits, enter the code left to right and then add zeros in the remaining unoccupied boxes.

  For example the code sequences 33466 would be entered as:

3	3	4	6	6	0

  The code sequences 5133 would be entered as:

5	1	3	3	0	0

Completing Part B of the Supplemental Form.

A U.S. employer seeking an exemption from the **$1,500.00** or **$750.00** filing fee must complete Part B. A U.S. employer is exempt from payment of the additional **$1,500.00** or **$750.00** filing fee if:

- The employer is an institution of higher education as defined in the Higher Education Act of 1965, section 101 (a), 20 U.S.C. section 1001 (a); or
- The employer is a nonprofit organization or entity related to, or affiliated with an institution of higher education. Institutions of higher education are defined in the Higher Education Act of 1965, section 101(a), 20 U.S.C., section 1001(a). Such a nonprofit organization or entity includes but is not limited to hospitals and medical research institutions. "Related to" or "affiliated with" means the entity is:
  - **(a)** Connected or associated with the institution of higher education through shared ownership or control by a board or federation operated by the institution of higher education, or
  - **(b)** Attached to the institution of higher education as a member, branch, cooperative or subsidiary.

  "Nonprofit organization or entity" means the organization or entity is **(a)** defined as a tax exempt organization under the Internal Revenue Code of 1986, section 501(c)(3), (c)(4), or (c)(6), and **(b)** has been approved as a tax exempt organization for research or educational purposes by the Internal Revenue Service; or

- The employer is a nonprofit research organization or governmental research organization that is primarily engaged in basic research and/or applied research. "Nonprofit organization or entity" means the organization or entity is:
  - **(a)** Defined as a tax exempt organization under the Internal Revenue Code of 1986, section 501(c)(3), (c)(4), or (c)(6); 26 U.S.C. 501(c)(3), (c)(4), or (c)(6), and
  - **(b)** Has been approved as a tax exempt organization for research or educational purposes by the Internal Revenue Service.

  A government research organization is a U.S. Federal government entity whose primary mission is the performance or promotion of basic research and/or applied research; or
- This petition is the second or subsequent request for an extension of stay filed by the employer regardless of when the first extension of stay was filed or whether the **$1,500.00** or **$750.00** filing fee was paid on the initial petition or the first extension of stay; or
- This petition is an amended petition that does not contain any requests for extension of stay filed by the employer; or
- This petition is to correct a USCIS error; or
- The employer is a primary or secondary education institute; or
- The employer is a nonprofit entity which engages in an established curriculum-related clinical training or students register at the institution.

What evidence is required under Part B?

U.S. employers claiming exemption from payment of the **$1,500.00** or **$750.00** filing fee on the basis of status as **(a)** a nonprofit organization or entity related to, or affiliated with an institution of higher education, or **(b)** as a nonprofit research organization must submit evidence of tax exempt status under the Internal Revenue Code of 1986, section 501(c)(3), (4), or (6), 26 U.S.C. 501(c)(3), (c)(4), or (c)(6); or

All other U.S. employers claiming exemption from payment of the **$1,500.00** or **$750.00** filing fee must submit a statement describing why the organization or entity is exempt.

Completing Part C of the Supplemental Form.

All U.S. employers must complete **Part C** even if they are not claiming the fee exemption in **Part B**.

H-2A.

An H-2A is an alien coming temporarily to engage in temporary or seasonal agricultural employment.

Write **H-2A** in the classification block on the petition.

The petition must be filed by a U.S. employer or an association of U.S. agricultural producers named as a joint employer on the certification. The petition must be submitted with:

- A single valid temporary agricultural labor certification or, if U.S. workers do not appear at the work-site, a copy of the U.S. Department of Labor's denial of a certification and appeal, and evidence showing that qualified domestic labor is unavailable; and
- Copies of evidence showing that each named alien met the minimum job requirements stated in the certification at time the application was filed.

H-2B.

An H-2B is an alien coming temporarily to engage in non-agricultural employment that is seasonal, intermittent, to meet a peak load need, or a one-time occurrence.

Write **H-2B** in the classification block on the petition.

The petition must be filed by a U.S. employer with either:

- A temporary labor certification from the U.S. Department of Labor, or the Governor of Guam if the proposed employment is solely in Guam, stating that qualified U.S. workers are not available and that employment of the alien will not adversely affect the wages and working conditions of similarly employed U.S. workers; or
- A notice from such authority that the temporary labor certification cannot be made, along with evidence of the unavailability of U.S. workers and of the prevailing wage rate for the occupation in the United States, and evidence overcoming each reason why the certification was not granted; and
- Copies of evidence, such as employment letters and training certificates, showing that each named alien met the minimum job requirements stated in the certification at the time the application was filed.

NOTE: Employers filing H-2B petitions for employment to commence on or after October 1, 2005 must submit an additional fee of **$150.00**. The Save Our Small and Seasonal Businesses Act of 2005 authorized this **$150.00** Fraud Prevention and Detection Fee.

NOTE: For additional information see the U.S. Department of Labor Internet website at **www.ows.doleta.gov/foreign**.

H-3. (Two types)

An H-3 is an alien coming temporarily to participate in a special education training program in the education of children with physical, mental or emotional disabilities.

Write **H-3** in the classification block on the petition.

Custodial care of the children must be incidental to the training program. The petition must be filed by the U.S. employer with:

- A description of the training, staff and facilities, evidence that the program meets the above conditions, and details of the alien's participation in the program; and
- Evidence showing that the alien is nearing completion of a baccalaureate degree in special education, or already holds such a degree or has extensive prior training and experience in teaching children with physical, mental or emotional disabilities.

An H-3 is also an alien coming temporarily to receive training from an employer in any field other than graduate education or training.

Write **H-3** in the classification block on the petition.

The petition must be filed by the U.S. employer with:

- A detailed description of the structured training program, including the number of classroom hours per week and the number of hours of on-the-job training per week;
- A summary of the prior training and experience of each alien in the petition; and
- An explanation stating why the training is required, whether similar training is available in the alien's country, how the training will benefit the alien in pursuing a career abroad, and why the petitioner will incur the cost of providing the training without significant productive labor.

L-1A.

Write **L-1A** in the classification requested block on the petition.

An L-1A is an alien coming temporarily to perform services in a managerial or executive capacity for the same corporation or firm, or for the branch, subsidiary or affiliate of the employer who employed him or her abroad for one continuous year within the three-year period (six months within the previous three years if the employer is eligible and has filed for a blanket L-1 approval and meets the requirements for expedited processing), immediately preceding the filing of the petition, in an executive, managerial or specialized knowledge capacity.

L-1B.

Write **L-1B** in the classification requested block on the petition.

An L-1B is an alien coming temporarily to perform services that entail specialized knowledge for the same corporation or firm, or for the branch, subsidiary or affiliate of the employer that employed him or her abroad for one continuous year within the three-year period (six months within the previous three years if the employer is eligible and has filed for a blanket L-1 approval and meets the requirements for expedited processing), immediately preceding the filing of the petition, in an executive, managerial or specialized knowledge capacity. Specialized knowledge is special knowledge of the employer's product or its application in international markets or an advanced level of the knowledge of the employer's processes and procedures.

L Petition Requirements.

A U.S. employer or foreign employer must file the petition, but a foreign employer must have a legal business entity in the United States. The petition must be submitted with:

- Evidence of the qualifying relationship between the United States and foreign employer, based on ownership and control, such as an annual report, articles of incorporation, financial statements or copies of stock certificates;
- A letter from the alien's foreign qualifying employer detailing his or her dates of employment, job duties, qualifications and salary; and
- A description of the proposed job duties and qualifications, and evidence showing that the proposed employment is in an executive, managerial or specialized knowledge capacity.

If the alien is coming to the United States to open a new office, also file the petition with copies of evidence showing that the business entity is located in the United States; and

- Already has sufficient premises to house the new office;
- Has or upon establishment will have the qualifying relationship to the foreign employer; and
- Has the financial ability to remunerate the alien and to begin doing business in the United States, including evidence about the size of the U.S. investment, the organizational structure of both firms, the financial size and condition of the foreign employer, and if the alien is coming as an L-1 manager or executive to open a new office, such evidence must establish that the intended U.S. operation will support the executive or managerial position within one year.

Blanket L Petition.

An L blanket petition simplifies the process of later filing for individual L-1A workers and L-1B workers who are specialized knowledge professionals employed in positions requiring the theoretical and practical application of a body of highly specialized knowledge to fully perform the occupation and requiring also completion of a specific course of education, culminating in a baccalaureate degree in a specific occupational specialty.

A blanket L petition must be filed by a U.S. employer who will be the single representative between USCIS and the qualifying organizations.

Write **LZ** in the classification requested block. Do not name an individual employee. File the petition with copies of evidence showing that:

- You and your branches, subsidiaries and affiliates are engaged in commercial trade or services;
- You have an office in the United States that has been doing business for one year or more;
- You have three or more domestic and foreign branches, subsidiaries or affiliates; and
- You and your qualifying organizations have obtained approved petitions for at least ten "L" managers, executives or specialized knowledge professionals during the previous 12 months or have U.S. subsidiaries or affiliates with combined annual sales of at least 25 million dollars; or
- You have a U.S. work force of at least 1,000 employees.

After approval of a blanket petition, you may file for individual employees to enter as an L-1A alien or L-1B specialized knowledge professional under the blanket petition. If the alien is outside the United States, file Form I-129S, Nonimmigrant Petition Based on Blanket L Petition. If the alien is already in the United States, file the Form I-129 to request a change of status based on this blanket petition. The petition must be submitted with:

- A copy of the USCIS approval notice for the blanket petition;
- A letter from the alien's foreign qualifying employer detailing his or her dates of employment, job duties, qualifications and salary for the three previous years; and
- If the alien is a specialized knowledge professional, a copy of a U.S. degree or a foreign degree equivalent to a U.S. degree.

O-1A.

An O-1A is an alien coming temporarily who has extraordinary ability in the sciences, education, business or athletics (not including the arts, motion picture or television industry).

Write **O-1A** in the classification block on the petition. The petition must be submitted with:

- A written consultation from a peer group or labor management organization with expertise in the field. If the above item cannot be obtained, the consultation can be from a person of your (the employer's) choosing with expertise in the alien's area of ability (see **General Evidence**);
- A copy of any written contract between you (the employer) and the alien or a summary of the terms of the oral agreement under which the alien will be employed;
- An explanation of the nature of the events or activities, the beginning and ending dates for the events or activities, and a copy of any itinerary for the events and activities.
- Evidence of the alien's extraordinary ability, such as receipt of major awards or prizes, major published material by the alien or relating to the alien's work, evidence of the alien's contributions to the field, evidence of the alien's original scholarly work or contributions to the field, evidence of the alien's high salary within the field, evidence that the alien participated on a panel, judging the work of others in the field, or evidence of the alien's prior employment in one or more critical capacities.

NOTE: If the preceding forms of evidence do not readily apply to the alien's field of endeavor, you may submit other comparable evidence.

O-1B.

An O-1B is an alien coming temporarily who has extraordinary ability in the arts or extraordinary achievement in the motion picture or television industry.

Write **O-1B** in the classification block on the petition. The petition must be submitted with:

- A written consultation from a peer group or a person of your (the employer's) choosing with expertise in the alien's area of ability (see **General Evidence**). If the petition is based on the alien's extraordinary achievement in the motion picture or television industry, separate consultations are required from the relevant labor and management organizations;
- A copy of any written contract between you (the employer) and the alien or a summary of the terms of the oral agreement under which the alien will be employed;
- Evidence that the alien has received or been nominated for significant national or international awards or prizes in the field, such as an Academy Award, Emmy, Grammy or Director's Guild Award, or at least three of the following:
  - -- Evidence that the alien has performed or will perform as a lead or starring participant in productions or events that have a distinguished reputation;
  - -- Evidence that the alien has achieved national or international recognition for achievements in the field;
  - -- Evidence that the alien has a record of major commercial or critically acclaimed successes, as evidenced by ratings, box office receipts, etc.;

- -- Evidence that the alien has received significant recognition from organizations, critics, government agencies or other recognized experts;
- -- Evidence that the alien commands or will command a high salary or other remuneration for services in relation to others in the field; or
- -- Evidence that the alien has performed in a lead or starring role for organizations that have a distinguished reputation.

NOTE: If the preceding forms of evidence do not readily apply to the alien's field of endeavor, you may submit other comparable evidence.

O-2.

An O-2 is an alien coming temporarily, solely as an essential and integral part of the artistic or athletic performance of an O-1 artist or athlete because he or she performs support services that are essential to the successful performance of the O-1. No test of the U.S. labor market is required.

Write **O-2** in the classification block on the petition.

This form must be filed in conjunction with an O-1 petition and submitted with:

- A written consultation (see **General Evidence**);
  - -- If it is for support of an athlete or an alien with extraordinary ability in the arts, the consultation must be from an appropriate labor organization; or
  - -- If it is for support of an alien with extraordinary achievement in motion pictures or television, the consultation must be from an appropriate labor organization and management organization.
- Evidence of the current essentiality, skills and experience of the O-2 with the O-1. In the case of a specific motion picture or television production, the evidence must establish that significant production has taken place outside the United States and that the continuing participation of the alien is essential to the successful completion of the production.

P-1A.

A P-1A is an alien coming temporarily, to perform at a specific athletic competition as an individual or as part of a group or team participating at an internationally recognized level of performance.

Write **P-1A** in the classification block on the petition. The petition must be submitted with:

- A written consultation (see **General Evidence**) with an appropriate labor organization;
- A copy of the contract with a major U.S. sports league or team or a contract in an individual sport commensurate with national or international recognition in the sport, if such contracts are normally utilized in the sport;
- Evidence of at least two of the following:
  - -- Substantial participation in a prior season with a major U.S. sports league;
  - -- Participation in international competition with a national team;
  - -- Substantial participation in a prior season for a U.S. college or university in intercollegiate competition;
  - -- A written statement from an official of a major U.S. sports league or official of the governing body for a sport that details how the alien or team is internationally recognized;
  - -- That the individual or team is ranked, if the sport has international rankings; or
  - -- That the alien or team has received a significant honor or award in the sport.

P-1B.

A P-1B is an alien entertainer coming temporarily to perform as a member of a foreign-based entertainment group, that has been recognized internationally as outstanding in the discipline for a substantial period of time, and who has had a sustained relationship (ordinarily for at least one year) with the group.

Write **P-1B** in the classification block on the petition. The petition must be submitted with:

- A written consultation (see **General Evidence**) from an appropriate labor organization;
- Evidence that the alien or group is internationally recognized in the discipline as demonstrated by the submission of evidence of the group's receipt or nomination for significant international awards or prizes for outstanding achievement, or evidence of at least three of the following:
  - -- The alien or group has performed or will perform as a starring or leading group in productions or events with a distinguished reputation;
  - -- The alien or group has achieved international recognition and acclaim for outstanding achievement in the field;
  - -- The alien or group has a record of major commercial or critically acclaimed success;

- -- The alien or group has received significant recognition for achievements from critics, organizations, government agencies or other recognized experts in the field; or
- -- The alien or group commands a high salary or other substantial remuneration for services, compared to other similarly situated in the field.

NOTE:

- By filing for a P-1 group, the petitioner certifies that the group has been established and performing regularly for a period of at least one year, and that at least 75 percent of the members of the group have been performing with the group for at least one year. This one-year period requirement does not apply to circus groups coming to perform with nationally recognized circuses.
- Use the "Supplementary Information" form to request a waiver of:
  - -- The one-year relationship requirement and the international recognition requirement based on emergent circumstances, or
  - -- The international recognition requirement because the group has been recognized nationally as outstanding in its discipline for a substantial period of time.

P-2.

A P-2 is an alien coming temporarily to perform as an artist or entertainer, individually or as part of a group, under a reciprocal exchange program between an organization in the United States and an organization in another country.

Write **P-2** in the classification block on the petition.

The petition must be filed by the sponsoring organization or U.S. employer with:

- A written consultation (see **General Evidence**) from an appropriate labor organization;
- A copy of the reciprocal exchange program;
- A statement from the sponsoring organization describing the reciprocal agreement as it relates to the petition;
- Evidence that the alien and the U.S. artist or group have comparable skills and that the terms of employment are similar; and
- Evidence that an appropriate labor organization in the United States was involved in negotiating or concurred with the exchange.

P-3.

A P-3 is an alien coming temporarily to perform, teach or coach, individually or as part of a group, in the arts or entertainment fields in a program that is culturally unique.

Write **P-3** in the classification block on the petition. The petition must be submitted with:

A written consultation (see **General Evidence**) from an appropriate labor organization;

Evidence that all performances will be culturally unique; and **either**

Affidavits, testimonials or letters from recognized experts attesting to the authenticity of the alien's or group's skills in presenting, coaching or teaching art forms; **or**

Documentation that the performance of the alien or group is culturally unique as evidenced by actual reviews in newspapers, journals or other published material.

Essential Support Personnel.

Accompanying support personnel are highly skilled aliens coming temporarily as an essential and integral part of the competition or performance of a principal P-1, P-2 or P-3, or because they perform support services that are essential to the successful performance or services of the principal P-1, P-2 or P-3. The accompanying personnel must have prior experience or critical skills with the principal P-1, P-2 or P-3. The petition must be filed in conjunction with a principal P-1, P-2 or P-3 petition.

Write **P-1S, P-2S** or **P-3S** as appropriate in the classification block on the petition.

The petition must be submitted with:

- A written consultation (see **General Evidence**) from an appropriate labor organization;
- A statement describing the alien's critical skills and prior experience with the principal P-1, P-2 or P-3;
- Statements or affidavits from persons with first hand knowledge that the alien has had substantial experience performing the critical skills and essential support services for the principal P-1, P-2 or P-3;
- A copy of any written contract between the employer and the alien or a summary of the terms of the oral agreement under which the alien will be employed.

Q-1.

A Q-1 is an alien coming temporarily to participate in an international cultural exchange program for sharing the attitude, customs, history, heritage, philosophy and/or traditions of the alien's country of nationality.

The culture sharing must take place in a school, museum, business or other establishment where the public, or a segment of the public sharing a common cultural interest, is exposed to aspects of a foreign culture as part of a structured program.

The work component of the program may not be independent of the cultural component, but must serve as the vehichle to achieve the objectives of the cultural component. An employer (U.S. or foreign firm, corporation, non-profit

organization, or other legal entity) or its designated agent may file the petition. If a designated agent is filing the petition, that agent must be employed by the qualified employer on a permanent basis in an executive or managerial capacity and must be either a U.S. citizen or lawful permanent resident. Write **Q-1** in the classification block on the petition.

The petition must be submitted with evidence showing that the employer:

- Maintains an established international cultural exchange program;
- Has designated a qualified employee to administer the program and serve as liaison with USCIS;
- Is actively doing business in the United States;
- Will offer the alien wages and working conditions comparable to those accorded local domestic workers similarly employed;
- Has the financial ability to remunerate the participant(s).

To illustrate an established international cultural exchange program, submit program documentation, such as catalogs, brochures or other types of material.

To demonstrate financial ability to remunerate the participant (s), submit your organization's most recent annual report, business income tax return or other form of certified accountant's report.

However, if the proposed dates of employment are within 15 months of the approval of a prior Q-1 petition filed by you for the same international cultural exchange program, and that earlier petition was filed with the above evidence of the program, you may submit a copy of the approval notice for that prior petition in lieu of the evidence about the program required above.

2. Petition only required for an alien in the U.S. to change status or extend stay.

The following classifications listed in this **Section 2** do not require a petition for new employment if the alien is outside the United States. The alien should instead contact a U.S. embassy or consulate for information about a visa or admission.

Use this Form I-129 when the beneficiary is physically present in the United States and a change of status, concurrent employment, or an extension of stay is needed. Note, however, that the beneficiary must maintain legal status in the United States to remain eligible for the benefit sought.

Change of Status: A petition for change of status to one of the classifications described in this Section must be submitted with the initial evidence detailed below and with the initial evidence required by the separate instructions for all petitions involving change of status.

Extension of Stay: A petition for an extension of stay must be filed with the initial evidence listed below and with the initial evidence required by the separate instructions for all petitions for extension. However, a petition for an extension based on unchanged, previously approved employment need only be filed with the initial evidence required by the separate extension of stay instructions.

E-1.

An E-1 is a national of a country with which the United States maintains a qualifying treaty, who is coming to the United States to carry on substantial trade principally between the United States and the alien's country of nationality.

Qualifying trade involves the commercial exchange of goods or services in the international market place. Substantial trade is an amount of trade sufficient to ensure continuous flow of international trade items between the United States and the treaty country. Principal trade exists when over 50 percent of the E-1's total volume of international trade is conducted between United States and the treaty country.

E-2.

An E-2 is a national of a country with which the United States maintains a qualifying treaty, who is coming to the United States to develop and direct the operations of an enterprise in which he or she has invested or is actively in the process of investing a substantial amount of capital.

An E-2 must demonstrate possession and control of funds and the ability to develop and direct the investment enterprise. Capital in the process of being invested or that has been invested must be placed at risk and irrevocably committed to the enterprise. The enterprise must be a real, active, and operating commercial or entrepreneurial undertaking, which produces services or goods for profit. The investment must be substantial and the enterprise must be more than marginal.

E-1 or E-2.

An employee of an **E-1** or an **E-2** who possesses the same nationality may respectively be classified as E-1 or E-2. The employee must principally and primarily perform executive or supervisory duties or possess special qualifications that are essential to the successful or efficient operation of the enterprise.

E Petition Requirements.

The petition must be filed with evidence of:

- Ownership and Nationality, including but not limited to lists of investors with current status and nationality, stock certificates, certificate of ownership issued by the commercial section of a foreign embassy and reports from a certified personal accountant;

- Substantial Trade (E-1), including but not limited to copies of three or more of the following: bills of lading, customs receipts, letter of credit, trade brochures, purchase orders, insurance papers, documenting commodities imported, carrier inventories and/or sales contracts;
- Substantial Investment (E-2), including but not limited to copies of partnership agreements (with a statement on proportionate ownership), articles of incorporation, payments for the rental of business premises or office equipment, business licenses, stock certificates, office inventories (goods and equipment purchased for the business), insurance appraisals, annual reports, net worth statements from certified professional accountants, advertising invoices, business bank accounts containing funds for routine operations, funds held in escrow; or
- Executive or Supervisory Duties, or Special Qualifications Essential to the Enterprise (E-1 Employee or E-2 Employee), including but not limited to certificates, diplomas or transcripts, letters from employers describing job titles, duties, operators' manuals, and the required level of education and knowledge.

R-1.

An R-1 is an alien who for at least two years has been a member of a religious denomination having a bona fide nonprofit, religious organization in the United States, coming temporarily to work solely:

- As a minister of that denomination;
- In a professional capacity in a religious vocation or occupation for that organization; or
- In a religious vocation or, occupation for the organization or its nonprofit affiliate.

Write **R-1** in the classification block on the petition.

The petition must be filed by a U.S. employer with the following documentation:

- A copy of the tax-exempt certificate showing the religious organization, and any affiliate that will employ the person, is a bona fide nonprofit religious organization in the United States and is exempt from taxation in accordance with section 501(c)(3) of the Internal Revenue Code of 1986 relating to religious organizations, or documents as is required by the Internal Revenue Service to establish eligibility for this tax exempt status.
- A letter or letters from the authorizing official of the religious denomination or organization that will be employing the alien or engaging the alien's services in the United States establishing that:
  - If the alien's religious membership was maintained in whole or in part outside the United States, the foreign and U.S. religious organizations belong to the same denomination;
  - Immediately prior to the filing of the petition or application for admission to the United States, the alien has been a member in the religious denomination for at least two years;
- As appropriate:
  - If the alien is a minister, he or she is authorized to conduct religious worship services for that denomination and to perform other duties usually performed by members of the clergy of that denomination, including a detailed description of those duties;
  - If the alien is a religious professional, he or she has at least a U.S. baccalaureate degree or its foreign equivalent and that at least such a degree is required for entry into the religious profession; or
  - If the alien is to work in another religious vocation or occupation, he or she is qualified in the religious vocation or occupation.
- The arrangements made, if any, for remuneration for services rendered by the alien, the amount and source of any salary, a description of any other types of remuneration to be received, and a statement whether such remuneration shall be in exchange for services rendered;
- The name and location of the specific organizational unit of the religious organization for which the alien will be providing services within the United States; and
- If the alien is to work in a non-ministerial and non-professional capacity for a bona fide organization that is affiliated with a religious denomination, evidence of the existence of the affiliation.

Change of Status.

In addition to the initial evidence for the classification you are requesting, a petition requesting a change of status for an alien in the United States must be submitted with a copy of the employee's(s) Form I-94, Nonimmigrant Arrival/Departure Record.

NOTE: Family members should use Form I-539, Application to Change/Extend Nonimmigrant Status, to apply for a change of status.

A nonimmigrant, who must have a passport to be admitted, must keep that passport valid during his or her entire stay. If a required passport is not valid, include a full explanation with your petition.

The following nonimmigrants are **not eligible** to change status:

- An alien admitted under a visa waiver program;
- An alien in transit (C) or in transit without a visa (TWOV);
- A crewman (D);

- A fiancé(e) (K-1) or his or her dependent (K-2);
- A J-1 exchange visitor whose status was for the purpose of receiving graduate medical training (unless a waiver has been granted under section 214(l) of the Immigration and Nationality Act);
- A J-1 exchange visitor subject to the foreign residence requirement who has not received a waiver of that requirement; and
- An M-1 student to an H classification, if training received as an M-1 helped him or her qualify for H classification.

Change of status to Free Trade nonimmigrants.

A Free Trade Nonimmigrant is a citizen of Canada or Mexico coming to the United States as a TN or a citizen from Chile or Singapore coming to the U.S. as an H-1B1 Free Trade Nonimmigrant temporarily under the provisions of a Free Trade Agreement. A qualified employer may file this Form I-129 for a citizen of one of the above countries if that citizen has already been admitted to the United States in a nonimmigrant category eligible for change of status. Along with the Form I-129 and related supplement (Nonimmigrant classification based on a
Free Trade Agreement Supplement), petitioners for Chile or Singapore H-1B1 nonimmigrants must also file the H-1Band H-1B1 Data Collection and Filing Fee Exemption Supplement to ensure accurate fee and data collection.
NOTE: Canadian or Mexican TN nonimmigrants can be petitioned for by either a U.S. employer or a foreign employer. However, for Chile or Singapore H-1B1 nonimmigrants, the petitioner must be a U.S. employer.
In addition to the required information noted above under **"Change of Status,"** submit the following:

- A letter from the employer stating the activity to be engaged in, the anticipated length of stay and the arrangements for remuneration;
- Evidence that the alien meets the educational and/or licensing requirements for the profession or occupation (including, for citizens of Chile, the post-secondary certificate for Agricultural Managers and Physical Therapists that is accepted by the U.S. Department of State if the citizen of Chile is receiving a nonimmigrant free trade visa overseas);
- For citizens of Chile and Singapore, a U.S. Department of Labor issued certified labor condition application.

Extension of Stay.

Extension of stay for all except Free Trade nonimmigrants.

A petition requesting an extension of stay for an employee in the United States must be filed with a copy of the employee's Form 1-94, Nonimmigrant Arrival/Departure Record, and a letter from the petitioner explaining the reasons for the extension. Consult the regulations relative to the specific nonimmigrant classification sought.

NOTE: Family members should use Form I- 539 to file for an extension of stay.

A nonimmigrant, who must have a passport to be admitted, must keep that passport valid during his or her entire stay. If a required passport is not valid, include a full explanation with your petition. Where there has been a change in the circumstances of employment, submit also the evidence required for a new petition.

Where there has been no change in the circumstances of employment, file your petition with the appropriate supplement and with your letter describing the continuing employment, and:

- If the petition is for H-1B status, submit an approved labor condition application for the specialty occupation valid for the period of time requested.
- If the petition is for H-2A status, submit a labor certification valid for the dates of the extension, unless it is based on a continuation of employment authorized by the approval of a previous petition filed with a certification, and the extension will last no longer than the previously authorized employment and no longer than two weeks.
- If the petition is for H-2B status, submit a labor certification valid for the dates of the extension.

Extension of Free Trade stay.

NOTE: Canadian or Mexican TN nonimmigrants can be petitioned for by either a U.S. employer or a foreign employer. However, for Chile or Singapore H-1B1 nonimmigrants, the petitioner must be a U.S. employer.

An employer requesting an extension of stay for an alien with a nonimmigrant classification based on a Free Trade Agreement should follow the above instructions. Submit with your extension request:

- -- A letter describing the continuing employment,
- -- The newly requested length of stay,
- -- Continued valid licensing if required by the profession and/or the State, and
- -- In the case of a Chile or Singapore H-1B1 Free Trade Nonimmigrant, a currently valid labor condition attestation.

Along with the Form I-129 and related supplement (Nonimmigrant classification based on a Free Trade Agreement Supplement), petitioners for Chile or Singapore H-1B1 nonimmigrants must also file the H-1B Data Collection and Filing Fee Exemptions Supplement to ensure accurate fee and data collection.

If the extension is for a Chile or Singapore H-1B1 Free Trade Nonimmigrant and it is the sixth consecutive extension request for that person, a statement to that effect must be provided.

General Evidence.

Written consultation. Noted classifications require a written consultation with a recognized peer group, union and/ or management organization regarding the nature of the work to be done and the alien's qualifications, before the petition may be approved.

To obtain timely adjudication of a petition, you should obtain a written advisory opinion from an appropriate peer group, union and/or management organization and submit it with the petition.

If you file a petition without the advisory opinion, you should send a copy of the petition and all supporting documents to the appropriate organization when you file the petition with USCIS, and name that organization in the petition.

Explain to the organization that USCIS will contact them for an advisory opinion. If an accepted organization does not issue an advisory opinion within a given time period, a decision will be made based upon the evidence of record.

If you do not know the name of an appropriate organization with which to consult, please indicate so on the petition. However, be advised that a petition filed without the actual advisory opinion will require substantially longer processing time.

Translations. Any foreign language document must be accompanied by a full English translation that the translator has certified as complete and correct, and by the translator's certification that he or she is competent to translate the foreign language into English.

Copies. If these instructions state that a copy of a document may be filed with this petition and you choose to send us the original, we may keep that original for our records.

Liability for Return Transportation.

The Immigration and Nationality Act makes a petitioner liable for the reasonable cost of return transportation for an H-1B, H-2B, O and P alien who is dismissed before the end of the authorized employment.

When to File.

Generally, a Form I-129 petition may not be filed more than six months prior to the date employment is scheduled to begin. Petitioners should review the appropriate regulatory provisions in 8 CFR which relate to the nonimmigrant classification sought.

File the petition as soon as possible before the proposed employment begins or before an extension of stay will be required. If the petition is not submitted at least 45 days before the employment begins, petition processing and subsequent visa issuance may not be completed before the alien's services are required or previous employment authorization ends.

Where to File.

Premium Processing

If you are requesting Premium Processing Services on Form I-129, Petition for Nonimmigrant Worker, you must also file Form I-907, Request for Premium Processing Services. Before you file the I-129/I-907 package, check the Premium Processing website to make sure the requested classification is Premium eligible.

Regular Processing

Form I-129 is filed either at the California Service Center or the Vermont Service Center, depending on the location of the beneficiary's temporary employment and the nonimmigrant classification sought. Prior to submitting your form(s), please note the different addresses. Failure to follow these instructions may result in your application or petition being rejected, delayed, or denied.

California Service Center Filings

File Form I-129 with the California Service Center if the beneficiary is or will be employed temporarily or receiving training in:

Alaska, Arizona, California, Colorado, Guam, Hawaii, Idaho, Illinois, Indiana, Iowa, Kansas, Michigan, Minnesota, Missouri, Montana, Nebraska, Nevada, North Dakota, Ohio, Oregon, South Dakota, Utah, Washington, Wisconsin, or Wyoming.

Mail your package to:

For Regular processing

H-1B Cap Cases:

USCIS
California Service Center
ATTN: H-1B Cap
P.O. Box 10129
Laguna Niguel, CA 92607-1012

U.S. Masters Cap Cases:

USCIS
California Service Center
ATTN: H-1B U.S. Masters Cap
P.O. Box 10129
Laguna Niguel, CA 92607-1012

H-1B Extensions:

USCIS
California Service Center
ATTN: H-1B Extensions
P.O. Box 10129
Laguna Niguel, CA 92607-1012

All other I-129 Cases:

USCIS
California Service Center
ATTN: I-129
P.O. Box 10129
Laguna Niguel, CA 92607-1012

Courier Address for All I-129s:

USCIS
California Service Center
24000 Avila Road
2nd Floor, Room 2312
Laguna Niguel, CA 92677
(Please note the type of I-129 in the attention line)

Premium Processing:

If the classification requested on Form I-129 is eligible for Premium Processing and you wish to request Premium Processing Services, please use the designated Premium Processing address for the California Service Center, as indicated below.

Form I-907/I-129 Regular Mailing Address:

Premium Processing Service
USCIS
California Service Center
P.O. Box 10825
Laguna Niguel, CA92607
(Please note the type of I-129 in the attention line)

Form I-907/I-129 Courier Mail Address:

Premium Processing Service
USCIS
California Service Center
24000 Avila Road
2nd Floor, Room 2312
Laguna Niguel, CA 92677
(Please note the type of I-129 in the attention line)

Form I-907/I-129 E-Mail Address:

CSC-Premium.Processing@dhs.gov

Vermont Service Center Filings

File Form I-129 with theVermont Service Center if the beneficiary is or will be employed temporarily or receiving training in:

Alabama, Arkansas, Connecticut, Delaware, the District of Columbia, Florida, Georgia, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Mississippi, New Hampshire, New Jersey, New Mexico, New York, North Carolina, Oklahoma, Pennsylvania, Puerto Rico, Rhode Island, South Carolina, Tennessee, Texas, Vermont, Virginia, U.S. Virgin Islands, or West Virginia.

Mail your package to:

H-1B Cap Cases:

USCIS
Vermont Service Center
ATTN: H-1B Cap
1A Lemnah Drive
St. Albans. VT 05479-0001

H-1BU.S. Masters Cap Cases:

USCIS
Vermont Service Center
ATTN: H-1B U.S. Masters Cap
1A Lemnah Drive
St. Albans. VT 05479-0001

All other I-129 Cases:

USCIS
Vermont Service Center
ATTN: I-129
75 Lower Welden Street
St. Albans, VT 05479-0001

Premium Processing:

If the classification requested on Form I-129 is eligible for Premium Processing and you wish to request Premium Processing Services, please use the designated Premium Processing address for the Vermont Service Center, as indicated below (for either mail or courier):

Vermont Service Center Filings

File Form I-129 with theVermont Service Center if the beneficiary is or will be employed temporarily or receiving training in:

Alabama, Arkansas, Connecticut, Delaware, the District of Columbia, Florida, Georgia, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Mississippi, New Hampshire, New Jersey, New Mexico, New York, North Carolina, Oklahoma, Pennsylvania, Puerto Rico, Rhode Island, South Carolina, Tennessee, Texas, Vermont, Virginia, U.S. Virgin Islands, or West Virginia.

Mail your package to:

H-1B Cap Cases:

USCIS
Vermont Service Center
ATTN: H-1B Cap
1A Lemnah Drive
St. Albans. VT 05479-0001

H-1B U.S. Masters Cap Cases:

USCIS
Vermont Service Center
ATTN: H-1B U.S. Masters Cap
1A Lemnah Drive
St. Albans. VT 05479-0001

All other I-129 Cases:

USCIS
Vermont Service Center
ATTN: I-129
75 Lower Welden Street
St. Albans, VT 05479-0001

Premium Processing:

If the classification requested on Form I-129 is eligible for Premium Processing and you wish to request Premium Processing Services, please use the designated Premium Processing address for the Vermont Service Center, as indicated below (for either mail or courier):

:

Form I-907/I-129 Mailing Address and Courier Address

H-1B Cap Cases:

Premium Processing Service
USCIS
Vermont Service Center
ATTN: H-1B Cap
30 Houghton Street
St. Albans. VT 05478-2399

H-1B U.S. Master Cap Cases:

Premium Processing Service
USCIS
Vermont Service Center
ATTN: H-1B U.S. Masters Cap
30 Houghton Street
St. Albans. VT 05478-2399

All other I-129 Cases:

Premium Processing Service
USCIS
Vermont Service Center
ATTN: I-129
30 Houghton Street
St. Albans. VT 05478-2399

Form I-907/I129 E-mail address:

VSC-Premium.Processing @dhs.gov.

Exceptions

- Form I-129 Filed for Temporary Employment or Training in More Than 1 Location: When the temporary employment or training will be in different locations, the state where your company or organization is located will determine the Service Center to which you should send the Form I-129 package. For example, the beneficiary will work in Arizona and Texas, and your company is located in New York, file Form I-129 with the Vermont Service Center.

- H-1C Classification for Nurses: Mail the I-129 package to the Vermont Service Center, regardless of where the temporary H-1C nurse will be employed.

- **R Classification for Temporary Religious Workers:** Mail the I-129 package to the California Service Center, regardless of where the temporary religious worker will be employed.

- **Major League Sports:** This covers major league athletes, minor league sports, and any affiliates associated with the major leagues in baseball, hockey, soccer, basketball, and football. Support personnel includes: coaches, trainers, broadcasters, referees, linesmen, umpires, and interpreters. Mail the I-129 package to theVermont Service Center, regardless of the place of temporary employment.

- **Trade NAFTA (TN) for Nationals of Mexico and Canada:**

  -- TN Extension or Change of Status for Nationals of Canada or Mexico Already in the U.S.: Mail the Form I-129 package to the Vermont Service Center, regardless of where the TN Canadian or Mexican national will be employed.

  -- Initial TN Classification for Nationals of Mexico: DO NOT use Form I-129 to apply for initial TN classification for a national of Mexico. To obtain more information on the application process, please visit the U.S. Department of State's TN Visa website.

  -- Initial TN Classification for Nationals of Canada: DO NOT use Form I-129 to apply for initial TN classification for a national of Canada. Please see 8 CFR 214.6 for information on applying at a U.S.port of entry.

H-1B1 Singapore/Chile Free Trade:

-- **Initial H-1B1 Classification under the Singapore/ Chile Free Trade Agreement for Beneficiaries Outside the U.S.:** DO NOT use Form I-129 to apply for initial H-1B1 classification. To obtain more information on the H-1B1 application process, please visit the U.S. Department of State's website.

-- **Change of Status to H-1B1 and Extension of H-1B1 Stay:** Mail the Form I-129 package to the Vermont Service Center, regardless of where the H-1B1 beneficiary will be employed.

- **E-3 Australian Free Trade:**

  -- **Change of Status to E-3 and E-3 Extension:** Mail the Form I-129 package to the Vermont Service Center, regardless of where the E-3 beneficiary will be employed.

  -- **Initial E-3 Classification for Beneficiaries Outside the U.S.:** DO NOT use Form I-129 to apply for initial E-3 classification if the beneficiary is outside the United States. To obtain more information on the E-3 application process, please visit the U.S. Department of State's website.

Updated filing Address Information

The filing addresses provided on this form reflect the most current information as of the date this form was last printed. If you are filing Form I-129 more than 30 days after the latest edition date shown in the lower right-hand corner, please visit us online at www.uscis.gov before you file, and check the Forms and Fees page to confirm the correct filing address and version currently in use. Check the edition date located in the lower right-hand corner of the form. If the edition date on your Form I-129 matches the edition date listed for Form I-129 on the online Forms and Fees page, your version is current and will be accepted by USCIS. If the edition date on the online version is later, download a copy and use the online version. If you do not have Internet access, call Customer Service at 1-800-375-5283 to verify the current filing address and edition date. **Improperly filed forms will be rejected, and the fee returned, with instructions to resubmit the entire filing using the current form instructions.**

Note on E-Filing

If you are e-filing this application, it will automatically be routed to the appropriate Service Center, and you will receive a receipt indicating the location to which it was routed. This location may not necessarily be the same center shown in the filing addresses listed above. For e-filed applications, it is very important to review your filing receipt and make specific note of the receiving location. All further communication, including submission of supporting documents, should be directed to the receiving location indicated on your e-filing receipt.

Fee.

The base fee for this petition is **$190.00**.

A U.S. employer filing a **$190.00** form I-129 for an H-1B nonimmigrant or for a Chile or Singapore H-1B1 Free Trade Nonimmigrant must submit the **$190.00** petition filing fee and, unless exempt under Part B of the H-1B Data Collection and Filing Fee Exemption Supplement, an additional fee of either **$1,500.00** or **$750.00**.

A U.S. employer with a total of 25 or less full-time equivalent employees in the United States (including any affiliate or subsidiary of the employer) is only obligated to pay the **$750.00** fee.

A U.S. employer filing a Form I-129 who is required to pay the additional fee may make the payment in the form of a single check or money order for the total amount due or as two checks or money orders, one for the additional fee and one for the petition fee.

NOTE: H-1B and L-1 petitioners required to pay the **$500.00** Fraud Prevention and Detection Fee mandated by the H-1B Visa Reform Act of 2004 must submit a check or money order separate from the additional fee and petition fee. Petitioners for Chile or Singapore H-1B1 Free Trade Nonnimmigrants do not have to pay this fee.

NOTE: Employers filing H-2B petitions for employment to commence on or after October 1, 2005 must submit an additional fee of **$150.00**. The Save Our Small and Seasonal Businesses Act of 2005 authorized this **$150.00** Fraud Prevention and Detection Fee.

The fee must be submitted in the exact amount. It cannot be refunded. **Do not mail cash.** All checks and money orders must be drawn on a bank or other institution located in the United States and must be payable in U.S. currency. The check or money order must be made payable to the **Department of Homeland Security**, except that:

- If you live in Guam and are filing this petition there, make your check or money order payable to the "Treasurer, Guam."
- If you live in the U.S. Virgin Islands and are filing this petition there, make your check or money order payable to the "Commissioner of Finance of the Virgin Islands."

When preparing the check or money order, spell out Department of Homeland Security. Do not use the initials "DHS" or "USDHS."

Checks are accepted, subject to collection. An uncollected check will render the petition and any document issued invalid. A charge of $30.00 will be imposed if a check in payment of a fee is not honored by the bank on which it is drawn.

How to check if the fee is correct. The fee on this form is current as of the publication date appearing in the lower right corner of this page. However, because USCIS fees change periodically, you can verify if the fee is correct by following one of the steps below.

- Visit our website at **www.usics.gov** and scroll down to "Forms and E-Filing" to check the appropriate fee, or
- Review the Fee Schedule included in your form package, if you called us to request the form, or
- Telephone our National Customer Service Center at **1-800-375-5283** and ask for the fee information.

Processing Information.

Any petition that is not signed or accompanied by the correct fee, will be rejected with a notice that the petition is deficient. You may correct the deficiency and resubmit the petition. A petition is not considered properly filed until accepted by USCIS.

Initial processing. Once a petition has been accepted, it will be checked for completeness, including submission of the required initial evidence. If you do not completely fill out the form, or file it without required initial evidence, you will not establish a basis for eligibility and we may deny your petition.

Requests for more information or interview. We may request more information or evidence, or we may request that you appear at a USCIS office for an interview. We may also request that you submit the originals of any copy. We will return these originals when they are no longer required.

Penalties.

If you knowingly and willfully falsify or conceal a material fact or submit a false document with this petition, we will deny the petition and may deny any other immigration benefit.

In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

Decision. The decision on a petition involves separate determinations of whether you have established that the alien is eligible for the requested classification based on the proposed employment, and whether he or she is eligible for any requested change of status or extension of stay. You will be notified of the decision in writing.

Privacy Act Notice.

We ask for the information on this form and associated evidence to determine if you have established eligibility for the immigration benefit you are seeking. Our legal right to ask for this information is in 8 U.S.C. 1154, 1184 and 1258. We may provide this information to other government agencies. Failure to provide this information and any requested evidence may delay a final decision or result in denial of your petition.

Information and Forms.

To order USCIS forms, call our to toll-free forms line at **1-800-870-3676**. You can also get USCIS forms and information on immigration laws, regulations and procedures by telephoning our National Customer Service Center at **1-800-375-5283** or visiting our internet website at **www.uscis.gov**.

Use InfoPass for Appointments.

As an alternative to waiting in line for assistance at your local USCIS office, you can now schedule an appointment through our internet-based system, **InfoPass**. To access the system, visit our website at **www.uscis.gov**. Use the **InfoPass** appointment scheduler and follow the screen prompts to set up your appointment. **InfoPass** generates an electronic appointment notice that appears on the screen. Print the notice and take it with you to your appointment. The notice gives the time and date of your appointment, along with the address of the USCIS office.

Paperwork Reduction Act Notice.

We try to create forms and instructions that are accurate, can be easily understood and that impose the least possible burden on you to provide us with information. Often this is difficult because some immigration laws are very complex.

The estimated average time to complete and file this petition is as follows: (1) 60 minutes to learn about the law and form; (2) 60 minutes to complete the form; and (3) 45 minutes to assemble and file the petition; for a total estimated average of 2 hours and 45 minutes per petition.

If you have comments regarding the accuracy of this estimate or suggestions for making this form simpler, you can write to the U.S. Citizenship and Immigration Services, Regulatory Management Division, 111 Massachusetts Avenue, N.W., Suite 3000, Washington, D.C. 20529; OMB No. 1615-0009. **Do not mail your petition to this Washington, D. C. address.**

OMB Approval: 1205-0310
Expiration Date: 10/31/2021

Labor Condition Application for Nonimmigrant Workers
Form ETA-9035 & 9035E
U.S. Department of Labor

Please read and review the filing instructions carefully before completing the Form ETA- 9035 or 9035E. A copy of the instructions can be found at http://www.foreignlaborcert.doleta.gov/. In accordance with Federal Regulations at 20 CFR 655.730(b), incomplete or obviously inaccurate Labor Condition Applications (LCAs) will not be certified by the Department of Labor (DOL). For all submissions, both electronic (Form ETA- 9035E) or paper (Form ETA- Form 9035 where the employer has notified DOL that it will submit this form non-electronically due to a disability or received permission from DOL to file non-electronically due to lack of Internet access), ALL required fields/items containing an asterisk (*) must be completed as well as any fields/items where a response is conditional as indicated by the section (§) symbol.

A. Employment-Based Nonimmigrant Visa Information

1. Indicate the type of visa classification supported by this application *(Write classification symbol)*: *	

B. Temporary Need Information

1. Job Title *		
2. SOC (ONET/OES) code *	3. SOC (ONET/OES) occupation title *	
4. Is this a full-time position? * ❑ Yes ❑ No	**Period of Intended Employment**	
	5. Begin Date * *(mm/dd/yyyy)*	6. End Date * *(mm/dd/yyyy)*

7. Worker positions needed/basis for the visa classification supported by this application

☐ **Total Worker Positions Being Requested for Certification ***

Basis for the visa classification supported by this application
(indicate total workers in each applicable category)

☐ a. New employment *	☐ d. New concurrent employment *
☐ b. Continuation of previously approved employment without change with the same employer*	☐ e. Change in employer *
☐ c. Change in previously approved employment *	☐ f. Amended petition *

C. Employer Information

1. Legal business name *		
2. Trade name/Doing Business As (DBA), if applicable		
3. Address 1 *		
4. Address 2		
5. City *	6. State *	7. Postal code *
8. Country *	9. Province	
10. Telephone number *	11. Extension	
12. Federal Employer Identification Number (FEIN from IRS) *	13. NAICS code (must be at least 4-digits) *	

Case Number:_____ Case Status: _____ Period of Employment: _____ to _____

D. Employer Point of Contact Information

Important Note: The information contained in this Section must be that of an employee of the employer who is authorized to act on behalf of the employer in labor certification matters. The information in this Section must be different from the agent or attorney information listed in Section E, unless the attorney is an employee of the employer.

1. Contact's last (family) name *	2. First (given) name *	3. Middle name(s)
4. Contact's job title *		
5. Address 1 *		
6. Address 2		
7. City *	8. State *	9. Postal code *
10. Country *	11. Province	
12. Telephone number *	13. Extension	14. E-Mail address

E. Attorney or Agent Information (If applicable)

Important Note: The employer authorizes the attorney or agent identified in this section to act on its behalf in connection with the filing of this application.

1. Is the employer represented by an attorney or agent in the filing of this application? * If "Yes," complete the remainder of Section E below.		❑ Yes ❑ No
2. Attorney or Agent's last (family) name §	3. First (given) name §	4. Middle name(s)
5. Address 1 §		
6. Address 2		
7. City §	8. State §	9. Postal code §
10. Country §	11. Province	
12. Telephone number §	13. Extension	14. E-Mail address
15. Law firm/Business name §	16. Law firm/Business FEIN §	
17. State Bar number (only if attorney) §	18. State of highest court where attorney is in good standing (only if attorney) §	
19. Name of the highest State court where attorney is in good standing (only if attorney) §		

F. Employment and Wage Information

Important Note: The employer must define the intended place(s) of employment with as much geographic specificity as possible. Each intended place(s) of employment listed below must be the worksite or physical location where the work will actually be performed and cannot be a P.O. Box. The employer must identify all intended places of employment, including those of short duration, on the LCA. 20 CFR 655.730(c)(5). If the employer is submitting this form non-electronically and the work is expected to be performed in more than one location, an attachment must be submitted in order to complete this section. An employer has the option to use either a single Form ETA-9035/9035E or multiple forms to disclose all intended places of employment. If the employer has more than ten (10) intended places of employment at the time of filing this application, the employer must file as many additional LCAs as are necessary to list all intended places of employment. See the form instructions for further information about identifying all intended places of employment.

a. ***Place of Employment Information 1***

1. Enter the estimated number of workers that will perform work at this place of employment under the LCA.*	
2. Indicate whether the worker(s) subject to this LCA will be placed with a secondary entity at this place of employment. *	❑ Yes ❑ No
3. If "Yes" to question 2, provide the legal business name of the secondary entity. §	
4. Address 1 *	
5. Address 2	
6. City *	7. County *
8. State/District/Territory *	9. Postal code *
10. Wage Rate Paid to Nonimmigrant Workers * From* $ _____ . _____ To: $ _____ . _____	10a. Per: (Choose only one)* ☐ Hour ☐ Week ☐ Bi-Weekly ☐ Month ☐ Year
11. Prevailing Wage Rate * $ _____ . _____	11a. Per: (Choose only one)* ☐ Hour ☐ Week ☐ Bi-Weekly ☐ Month ☐ Year

Questions 12-14. Identify the source used for the prevailing wage (PW) *(check and fully complete only one)*: *

12. ☐	**A Prevailing Wage Determination (PWD) issued by the Department of Labor**	a. PWD tracking number §
13. ☐	**A PW obtained independently from the Occupational Employment Statistics (OES) Program**	
	a. Wage Level *(check one)*: § ☐ I ☐ II ☐ III ☐ IV ☐ N/A	b. Source Year §
14. ☐	**A PW obtained using another legitimate source (other than OES) or an independent authoritative source**	
	a. Source Type *(check one)*: § ☐ CBA ☐ DBA ☐ SCA ☐ Other/ PW Survey	b. Source Year §
	c. If responded "Other/ PW Survey" in question 14.a, enter the name of the survey producer or publisher §	
	d. If responded "Other/ PW Survey" in question 14.a, enter the title or name of the PW survey §	

G. Employer Labor Condition Statements

Important Note: In order for your application to be processed, you MUST read Section G of the Form ETA-9035CP - General Instructions for the 9035 & 9035E under the heading "Employer Labor Condition Statements" and agree to all four (4) labor condition statements summarized below:

(1) **Wages:** The employer shall pay nonimmigrant workers at least the prevailing wage or the employer's actual wage, whichever is higher, and pay for non-productive time. The employer shall offer nonimmigrant workers benefits and eligibility for benefits provided as compensation for services on the same basis as the employer offers to U.S. workers. The employer shall not make deductions to recoup a business expense(s) of the employer including attorney fees and other costs connected to the performance of H-1B, H-1B1, or E-3 program functions which are required to be performed by the employer. This includes expenses related to the preparation and filing of this LCA and related visa petition information. 20 CFR 655.731;

(2) **Working Conditions:** The employer shall provide working conditions for nonimmigrants which will not adversely affect the working conditions of workers similarly employed. The employer's obligation regarding working conditions shall extend for the duration of the validity period of the certified LCA or the period during which the worker(s) working pursuant to this LCA is employed by the employer, whichever is longer. 20 CFR 655.732;

(3) **Strike, Lockout, or Work Stoppage:** At the time of filing this LCA, the employer is not involved in a strike, lockout, or work stoppage in the course of a labor dispute in the occupational classification in the area(s) of intended employment. The employer will notify the Department of Labor within 3 days of the occurrence of a strike or lockout in the occupation, and in that event the LCA will not be used to support a petition filing with the U.S. Citizenship and Immigration Services (USCIS) until the DOL Employment and Training Administration (ETA) determines that the strike or lockout has ended. 20 CFR 655.733; and

(4) **Notice:** Notice of the LCA filing was provided no more than 30 days before the filing of this LCA or will be provided on the day this LCA is filed to the bargaining representative in the occupation and area of intended employment, or if there is no bargaining representative, to workers in the occupation at the place(s) of employment either by electronic or physical posting. This notice was or will be posted for a total period of 10 days, except that if employees are provided individual direct notice by e-mail, notification need only be given once. A copy of the notice documentation will be maintained in the employer's public access file. A copy of this LCA will be provided to each nonimmigrant worker employed pursuant to the LCA. The employer shall, no later than the date the worker(s) report to work at the place(s) of employment, provide a signed copy of the certified LCA to the worker(s) working pursuant to this LCA. 20 CFR 655.734.

1. **I have read and agree to** Labor Condition Statements 1, 2, 3, and 4 above and as fully explained in Section G of the Form ETA-9035CP – General Instructions for the 9035 & 9035E and the Department's regulations at 20 CFR 655 Subpart H. *	❑ Yes ❑ No

H. Additional Employer Labor Condition Statements –H-1B Employers ONLY

Important Note: In order for your H-1B application to be processed, you MUST read Section H – Subsection 1 of the Form ETA 9035CP – General Instructions for the 9035 & 9035E under the heading "Additional Employer Labor Condition Statements" and answer the questions below.

a. Subsection 1

1. At the time of filing this LCA, is the employer H-1B dependent? §	❑ Yes ❑ No
2. At the time of filing this LCA, is the employer a willful violator? §	❑ Yes ❑ No
3. If "Yes" is marked in questions H.1 and/or H.2, you must answer "Yes" or "No" regarding whether the employer will use this application ONLY to support H-1B petitions or extensions of status for exempt H-1B nonimmigrant workers? §	❑ Yes ❑ No
4. If "Yes" is marked in question H.3, identify the statutory basis for the exemption of the H-1B nonimmigrant workers associated with this LCA. §	❑ $60,000 or higher annual wage ❑ Master's Degree or higher in related specialty ❑ Both
H-1B Dependent or Willful Violator Employers -Master's Degree or Higher Exemptions ONLY	
5. Indicate whether a completed Appendix A is attached to this LCA covering any H-1B nonimmigrant worker for whom the statutory exemption will be based **ONLY** on attainment of a Master's Degree or higher in related specialty. §	❑ Yes ❑ No ❑ N/A

If you marked "Yes" to questions H.a.1 (H-1B dependent) and/or H.a.2 (H-1B willful violator) and "No" to question H.a.3 (exempt H-1B nonimmigrant workers), you MUST read Section H – Subsection 2 of the Form ETA 9035CP – General Instructions for the 9035 & 9035E under the heading "Additional Employer Labor Condition Statements" and indicate your agreement to all three (3) additional statements summarized below.

b. Subsection 2

A. **Displacement:** An H-1B dependent or willful violator employer is prohibited from displacing a U.S. worker in its own workforce within the period beginning 90 days before and ending 90 days after the date of filing of the visa petition. 20 CFR 655.738(c);

B. **Secondary Displacement:** An H-1B dependent or willful violator employer is prohibited from placing an H-1B nonimmigrant worker(s) with another/secondary employer where there are indicia of an employment relationship between the nonimmigrant worker(s) and that other/secondary employer (thus possibly affecting the jobs of U.S. workers employed by that other employer), unless and until the employer subject to this LCA makes the inquiries and/or receives the information set forth in 20 CFR 655.738(d)(5) concerning that other/secondary employer's displacement of similarly employed U.S. workers in its workforce within the period beginning 90 days before and ending 90 days after the date of such placement. 20 CFR 655.738(d). Even if the required inquiry of the secondary employer is made, the H-1B dependent or willful violator employer will be subject to a finding of a violation of the secondary displacement prohibition if the secondary employer, in fact, displaces any U.S. worker(s) during the applicable time period; and

C. **Recruitment and Hiring:** Prior to filing this LCA or any petition or request for extension of status for nonimmigrant worker(s) supported by this LCA, the H-1B dependent or willful violator employer must take good faith steps to recruit U.S. workers for the job(s) using procedures that meet industry-wide standards and offer compensation that is at least as great as the required wage to be paid to the nonimmigrant worker(s) pursuant to 20 CFR 655.731(a). The employer must offer the job(s) to any U.S. worker who applies and is equally or better qualified for the job than the nonimmigrant worker. 20 CFR 655.739.

6. I have read and agree to Additional Employer Labor Condition Statements A, B, and C above and as fully explained in Section H – Subsections 1 and 2 of the Form ETA 9035CP – General Instructions for the 9035 & 9035E and the Department's regulations at 20 CFR 655 Subpart H. §	❑ Yes ❑ No

I. Public Disclosure Information

! **Important Note**: You must select one or both of the options listed in this Section.

1. Public disclosure information in the United States will be kept at: *	❑ Employer's principal place of business ❑ Place of employment

J. Notice of Obligations

A. Upon receipt of the certified LCA, the employer must take the following actions:

- Print and sign a hard copy of the LCA if filing electronically (20 CFR 655.730(c)(3));
- Maintain the original signed and certified LCA in the employer's files (20 CFR 655.705(c)(2); 20 CFR 655.730(c)(3); and 20 CFR 655.760); and
- Make a copy of the LCA, as well as necessary supporting documentation required by the Department of Labor regulations, available for public examination in a public access file at the employer's principal place of business in the U.S. or at the place of employment within one working day after the date on which the LCA is filed with the Department of Labor (20 CFR 655.705(c)(2) and 20 CFR 655.760).

B. The employer must develop sufficient documentation to meet its burden of proof with respect to the validity of the statements made in its LCA and the accuracy of information provided, in the event that such statement or information is challenged (20 CFR 655.705(c)(5) and 20 CFR 655.700(d)(4)(iv)).

C. The employer must make this LCA, supporting documentation, and other records available to officials of the Department of Labor upon request during any investigation under the Immigration and Nationality Act (20 CFR 655.760 and 20 CFR Subpart I).

I declare under penalty of perjury that I have read and reviewed this application and that to the best of my knowledge, the information contained therein is true and accurate. I understand that to knowingly furnish materially false information in the preparation of this form and any supplement thereto or to aid, abet, or counsel another to do so is a federal offense punishable by fines, imprisonment, or both (18 U.S.C. 2, 1001,1546,1621).

1. Last (family) name of hiring or designated official *	2. First (given) name of hiring or designated official *	3. Middle initial §
4. Hiring or designated official title *		
5. Signature *	6. Date signed *	

Case Number:_____ Case Status: _____ Period of Employment: _____ to _____

K. LCA Preparer

Important Note: Complete this section if the preparer of this LCA is a person other than the one identified in either Section D (employer point of contact) or E (attorney or agent) of this application.

1. Last (family) name §	2. First (given) name §	3. Middle initial
4. Firm/Business name §		
5. E-Mail address §		

L. U.S. Government Agency Use (ONLY)

By virtue of the signature below, the Department of Labor hereby acknowledges the following:

This certification is valid from _____ to _____.

_____ _____
Department of Labor, Office of Foreign Labor Certification Certification Date (date signed)

_____ _____
Case number Case Status

The Department of Labor is not the guarantor of the accuracy, truthfulness, or adequacy of a certified LCA.

M. Signature Notification and Complaints

The signatures and dates signed on this form will not be filled out when electronically submitting to the Department of Labor for processing, but **MUST** be complete when submitting non-electronically. If the application is submitted electronically, any resulting certification **MUST** be signed *immediately upon receipt* from DOL before it can be submitted to USCIS for final processing.

Complaints alleging misrepresentation of material facts in the LCA and/or failure to comply with the terms of the LCA may be filed using the WH-4 Form with any office of the Wage and Hour Division, U.S. Department of Labor. A listing of the Wage and Hour Division offices can be obtained at www.dol.gov/whd. Complaints alleging failure to offer employment to an equally or better qualified U.S. worker, or an employer's misrepresentation regarding such offer(s) of employment, may be filed with the U.S. Department of Justice, Civil Rights Division, Immigrant and Employee Rights Section, 950 Pennsylvania Avenue, NW, # IER, NYA 9000, Washington, DC, 20530, and additional information can be obtained at www.justice.gov. Please note that complaints should be filed with the Civil Rights Division, Immigrant and Employee Rights Section at the Department of Justice only if the violation is by an employer who is H-1B dependent or a willful violator as defined in 20 CFR 655.710(b) and 655.734(a)(1)(ii).

N. OMB Paperwork Reduction Act *(1205-0310)*

These reporting instructions have been approved under the Paperwork Reduction Act of 1995. Persons are not required to respond to this collection of information unless it displays a currently valid OMB control number. Your response is required to receive the benefit of consideration of your application. (Immigration and Nationality Act, Section 212(n) and (t) and 214(c)). Public reporting burden for this collection of information, which is to assist with program management and to meet Congressional and statutory requirements, is estimated to average 75 minutes per response, including the time to review instructions, search existing data sources, gather and maintain the data needed, and complete and review the collection of information.

Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to the U.S. Department of Labor, Employment and Training Administration, Office of Foreign Labor Certification, 200 Constitution Ave., NW, Box PPII 12-200, Washington, DC, 20210. (Paperwork Reduction Project OMB 1205-0310.) **Do NOT send the completed application to this address.**